

23STCV08505 23STCV08505

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-14

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Case Number: 23STCV08505 Hearing Date: September 14, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
14, 2026

CASE NAME: Denise

McMillan v. Louis Darwin Pizzo, et al.

CASE NO.: 23STCV08505

MOTION

FOR ATTORNEYS' FEES

MOVING PARTY: Plaintiff

Denise McMillan

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order awarding \$19,890.00 in attorneys' fees to Plaintiff.

TENTATIVE RULING:

1. Motion

for attorneys' fees is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On April 17, 2023, Plaintiff Denise McMillan (Plaintiff) filed a Complaint against Defendants Louis Darwin Pizzo and Home Depot USA, Inc. (Defendants) with causes of action for: (1) Breach of Contract, (2) Fraud, (3) Violations of the Unfair Business Practices Act, (4) Violations of the California Consumer Legal Remedies Act CCP § 1750, (5) Strict Liability, (6) Intentional Infliction of Emotional Distress, (7) Negligent Infliction of Emotional Distress, (8) Negligence, (9) Negligence Per Se, (10) Financial Elder Abuse, (11) Conversion, and (12) Civil Liability Pursuant to Penal Code § 496(c).

On August 7, 2024, Plaintiff filed a First Amended Complaint (FAC) with the same causes of action.

According to the FAC, Plaintiff relied on Defendant Home Depot's contractor referral network to engage Defendant Pizzo as a contractor to remodel her kitchen. Plaintiff further alleges that Defendant Pizzo was not a licensed contractor, destroyed her kitchen, stole from her, and abandoned the project. Plaintiff also alleges that Defendant Pizzo caused third parties to harass her and damage other property in retaliation for reporting him to the Contractor Licensing Board.

On September 10, 2024, Defendant Home Depot U.S.A., Inc. erroneously sued as Home Depot USA, Inc. (Home Depot) filed a demurrer with motion to strike to the FAC. The court SUSTAINED the demurrer with leave to amend and DENIED the motion to strike.

On February 6, 2025, Plaintiff filed the operative second amended complaint (SAC).

On April 11, 2025, Home Depot filed a demurrer with motion to strike to the SAC. The court SUSTAINED the demurrer without leave to amend and DENIED the motion to strike as moot.

On August 18, 2025, the court ordered Home Depot dismissed.

On November 25, 2025, Plaintiff filed a request for entry of default judgment as to Defendant Pizzo which the clerk rejected.

On December 2, 2025, the court held a default prove-up hearing, entered default against Defendant Pizzo, and took the matter under submission.

On January 6, 2026, the court ruled on the submitted default prove-up hearing. The court found judgment lies to only the breach of contract and negligence causes of action.

On February 5, 2026, the court entered default judgment consistent with its January 6, 2026 ruling. The court entered judgment on the breach of contract cause of action in the amount of \$18,855.02, \$8,964.41 on the negligence cause of action, \$15,900.21 in prejudgment interest on the breach of contract cause of action, \$1,760.46 in prejudgment interest on the negligence cause of action, for a total award of \$45,480.10. Additionally, the court awarded post-judgment interest at a rate of 10% per annum from the date of entry of Judgment until paid in full.

On February 20, 2026, Plaintiff filed a notice of intent to move for new trial.

On February 24, 2026, Plaintiff filed a memorandum of costs.

On March 2, 2026, Plaintiff filed a memorandum of points and authorities in support of her notice of intent to move for new trial.

On May 21, 2026, Plaintiff filed the instant motion for attorneys' fees.

LEGAL STANDARD:

With respect to attorney fees and costs, unless they are specifically provided for by statute (e.g., Cal. Code Civ. Proc. (CCP) §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.) The prevailing party on a contract, which specifically provides for attorney fees and costs incurred to enforce the agreement, is entitled to

reasonable attorney fees in addition to other costs. (Civ. Code § 1717(a); CCP §§ 1032, 1033.5(a)(10)(A).)

The court, upon notice and motion by a party, shall determine the prevailing party and shall fix, as an element of the costs of suit, the reasonable attorney fees. (Civ. Code § 1717(a), (b).) Any notice of motion to claim attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs. (CRC 3.1702; *Gunlock Corp. v. Walk on Water, Inc.* (1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]” (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623 624.)

The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Margolin v. Reg’l Planning Comm’n (1982) 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys’ fees award].) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

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In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

#### ANALYSIS:

Plaintiff contends that the court should exercise its discretion to award attorneys' fees to her under CCP § 1029.8 because Defendant Pizzo provided services requiring a license while he was unlicensed, the court entered judgment in Plaintiff's favor, the fees are reasonable, and the motion is timely.

"When a plaintiff requests entry of judgment by default, a request for attorney fees must be made at the same time or fees are forfeited."

(Vincent v. Sonkey (2020) 59

Cal.App.5th 160, 161.) "A postdefault motion would be unfair 'because a case in

which a defendant's default has been taken necessarily has no adversarial quality and the defaulted defendant would have no right to participate in the

motion.'" (Id. at p. 164 [citing Garcia v. Politis (2011) 192 Cal.App.4th 1474, 1479] [italics in original].)

Here, attorney's fees are not warranted. Critically, Plaintiff is barred from seeking them now. Indeed, she did not make the request under this theory in either the SAC or at the default prove-up hearing. As articulated in Vincent, such an award would be unfair.

Accordingly, the court DENIES Plaintiff's motion for attorneys' fees.

#### CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for attorneys' fees is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 14, 2026 \_\_\_\_\_ Upinder

S. Kalra

Judge

of the Superior Court